

## 24STCV22589 24STCV22589

County: los-angeles

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Case Number: 24STCV22589 Hearing Date: September 23, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

MOLAVINE WIDITORA,

vs.

RUSSELL GOMEZ.

Case No.:

24STCV22589

Hearing

Date: September 23, 2026

Moving Defendant

Russell

Gomez's demurrer to Plaintiffs Molavine Widitora's and Cynthia Widitora's first amended complaint is sustained with 20 days leave to amend.

Moving Defendant Russell Gomez ("Gomez")

("Moving Defendant") demurs to Plaintiffs Molavine Widitora's ("Molavine") and

Cynthia Widitora's ("Cynthia") (collectively, "Plaintiffs") first amended complaint ("FAC"). (Notice of Demurrer, pgs. 1-2; C.C.P. §§430.10 et seq., 337.15, 338.)

#### Meet and Confer

Before filing a demurrer, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41, emphasis added.)

Moving Defendant's counsel declares that he met and conferred telephonically with Plaintiffs' counsel on August 21, 2025. (See Decl. of Peto ¶13.) Moving Defendant's counsel's declaration is sufficient under C.C.P. §430.41. Accordingly, the Court will consider the instant demurrer.

#### Request for Judicial Notice

Moving Defendant's 5/22/26 request for judicial notice of (1) the Permit Application Status History for 4430 N. Richard Circle, Los Angeles, California 90032 ("Subject Property") (D-RJN, Exh. 1); and (2) Certificate of Occupancy (D-RJN, Exh. 2) is granted.

Moving Defendant's 5/22/26 request for judicial notice of the Complaint filed in this action is denied because the Court does not need to take judicial notice of filings on the instant docket.

#### Background

Plaintiffs filed their initial Complaint on September 4, 2024, against Moving Defendant and Non-moving Defendants Liel Construction, Inc. ("Liel Construction") and Michael Angel Oviedo ("Oviedo") (collectively, "Non-moving Defendants") (collectively, "Defendants") alleging three causes of action: (1) negligence [against all Defendants]; (2) violation of standards for residential construction [against all Defendants]; and (3) breach of contract [against Moving Defendant Gomez].

Plaintiffs filed the operative FAC on February 11, 2025, against Defendants alleging the same three causes of action.

Moving Defendant filed the instant demurrer on May 22, 2026. Plaintiffs filed their opposition on September 4, 2026. Moving Defendant filed his reply on September 16, 2026.

#### Summary of Demurrer

Moving Defendant demurs to the FAC in its entirety and each cause of action alleged therein on the grounds that the pleading is barred by the applicable statutes of limitation and repose.

(Demurrer, pg. 1; C.C.P. §430.10(e).)

Moving Defendant also demurs to the FAC in its entirety and each cause of action alleged therein on the grounds that the entire FAC is uncertain, ambiguous, and unintelligible. (Notice of Demurrer, pg. 1; C.C.P. §430.10(f).)

#### Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

#### Failure to State a Claim

#### Entire FAC

C.C.P. §337.15(a) provides,

No action may be brought to recover damages from

any person, or the surety of a person, who develops real property or performs or furnishes the design, specifications, surveying, planning, supervision, testing, or observation of construction or construction of an improvement to real property more than 10 years after the substantial completion of the development or improvement for any of the following:

(1)

Any latent deficiency in the design, specification, surveying, planning, supervision, or observation of construction or construction of an improvement to, or survey of, real property.

(2)

Injury to property, real or personal, arising out of any such latent deficiency.

(C.C.P. §337.15(a).)

C.C.P. §337.15(g)

provides,

(g) The 10-year period specified in subdivision

(a) shall commence upon substantial completion of the improvement, but not later than the date of one of the following, whichever first occurs:

(1)

The date of final inspection by the applicable public agency.

(2)

The date of recordation of a valid notice of completion.

(3)

The date of use or occupation of the improvement.

(4)

One year after termination or cessation of work on the improvement.

(C.C.P.

§337.15(g), emphasis added.)

Moving Defendant demurs to the entire FAC on the basis that it is barred by the 10-year statute of repose to sue for latent defective construction in C.C.P. §337.15(a).

(Demurrer, pgs. 3-4.) Moving

Defendant argues Plaintiffs' final inspection was on August 20, 2014, and therefore the statute of repose, which is "absolute" and cannot be extended, ran on August 20, 2024. (D-RJN, Exhs. 1, 2.) The Court agrees. This entire lawsuit, filed on September 2, 2024, is time-barred as a matter of law.

Plaintiff's argument in opposition that pursuant to C.C.P.

§337.15(f), C.C.P. §337.15(a) is not controlling is unavailing. C.C.P. §337.15(f) provides, "this section shall not apply to actions based on willful misconduct or fraudulent concealment." (C.C.P. §337.15(f).)

Plaintiff's initial Complaint, filed beyond the ten-year statute of repose on September 4, 2024, did not allege a cause of action for willful misconduct or fraudulent concealment.

Plaintiff's initial complaint merely alleges the legal conclusion on information and belief that Defendants "engaged in willful misconduct and fraudulent concealment by failing to disclose the DEFICIENCIES." (Complaint ¶15.)

If a statute of limitations appears on the face of a complaint, the plaintiff must plead around it. (Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 174-175 "[A] demurrer which merely states that the cause of action set forth in the complaint is on its face barred by the statute of limitations is sufficient to raise that defense."); Williams v. International Longshoremen's & Warehousemen's Union (1959) 172 Cal.App.2d 84, 87; see also Bainbridge v. Stoner (1940) 16 Cal.2d 423, 431-432.)

Here, the Complaint and FAC both attach a copy of the purchase agreement acknowledging Plaintiffs bought the Property from Moving Defendant 10 years ago. Therefore, it appears from the face of the Complaint that the first cause of action for negligence is barred by the three-year statute of limitations. (Civ. Code §338(b).) Similarly, the third cause of action for breach of contract is barred by the four-year statute of limitations. (Civ. Code §337(1).) The FAC does not state when Plaintiffs learned of the alleged negligence or breaches of contract, so it fails to plead around the blatant defect and fails to state facts sufficient to establish a cause of action. (C.C.P. §430.10(e).)

Accordingly, Moving Defendant's demurrer to Plaintiffs' entire FAC is sustained with 20 days leave to amend.

#### Conclusion

Moving Defendant's demurrer to Plaintiffs' first amended complaint is sustained with 20 days leave to amend.

Moving Party to give notice.

Dated: September \_\_\_\_, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court